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Tentative Ruling

Re: *Accardo v. Najafi, M.D.*
Superior Court Case No. 21CECG01831

Hearing Date: June 10, 2026 (Dept. 403)

Motion: By Plaintiffs for Protective Order to Reduce the Number of
Defendant's Designated Standard of Care Expert Witnesses

**If oral argument is timely requested, it will be entertained on
Thursday, June 11, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To grant. Defendant is limited to one expert on the standard of care for trial. By June 17, 2026, defendant shall identify which designated expert they elect to designate as their standard of care expert.

Explanation:

In this medical malpractice action defendant has designated two expert witnesses on the same topic – the standard of care, causation and damages. Plaintiffs move for a protective order requiring defendant to choose one.

The court “make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense.” (Code Civ. Proc., § 2034.250.) The court has discretion to limit the number of expert witnesses testifying at trial to avoid needless cumulative evidence and undue consumption of time. (Evid. Code, § 723.)

As defendant points out, we are not at trial, but in the discovery stage. However, at this point we are about four weeks from start of trial. Defense counsel only designated two experts on the standard of care because he did not know at the time of designation which of the two would be available to testify at trial. Defendant should be able to nail that down at this point. There is no need for plaintiffs to incur the burden and expense of deposing two experts on the same topics when only one will be testifying. It would be an undue burden and expense (Code Civ. Proc., § 2034.250), supporting the grant of this motion for protective order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 6-9-26 .
(Judge's initials) (Date)

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Tentative Ruling

Re: **Maganda v. American Honda Motor Co., Inc. et al.**
Superior Court Case No. 24CECG02892

Hearing Date: June 10, 2026 (Dept. 403)

Motion: by Defendants to Compel Vehicle Inspection and Request for Sanctions

**If oral argument is timely requested, it will be entertained on
Thursday, June 11, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To take the motion off calendar due to the moving party's failure to comply with Fresno Superior Court Local Rules, Rule 2.1.17.

Explanation:

Defendants American Honda Motor Co., Inc., and James McKoane Enterprises, Inc. dba Clawson Honda of Fresno ("Defendants") move to compel the vehicle inspection of plaintiff Enoc Maganda's vehicle.

Fresno Superior Court Local Rules, Rule 2.1.17 states in pertinent part:

No motion under sections 2017.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request has either been denied and permission to file the motion is granted via court order or the discovery dispute has not been resolved as a result of the Conference and permission to file the motion is expressly granted.

Defendants filed this motion under either Code of Civil Procedure section 2031.310 or section 2031.320. Accordingly, Fresno Superior Court Local Rules, Rule 2.1.17 applies. Defendants have not filed any request for a pretrial discovery conference and Defendants have not received permission to file this motion. The matter is ordered off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-9-26.
(Judge's initials) (Date)